

23STCV19876 23STCV19876

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-22

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Case Number: 23STCV19876 Hearing Date: September 22, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:58 PM on September 21, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 21, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that Defendant has failed to make payments due under a construction contract.

Defendant

filed a Cross-Complaint seeking damages for defective construction.

Various

Cross-Complaints were filed regarding indemnity vis-à-vis subcontractors.

Cross-Defendant Martin Monica doing

business as Marty Monica Custom Tiles moves for sanctions pursuant to Code Civ.

Proc. § 128.5 and 128.7 against plaintiff, William Horgan Construction; Paul W.

Smigliani, Esq. and his law firm, Intelink Law Group, PC; and Shanna Burkholder,

Esq. and her firm, Collins & Collins.

TENTATIVE RULING

Cross-Defendant Martin Monica doing

business as Marty Monica Custom Tiles's motion for sanctions pursuant to Code Civ.

Proc. § 128.5 and 128.7 against plaintiff, William Horgan Construction; Paul W.

Smigliani, Esq. and his law firm, Intelink Law Group, PC; and Shanna Burkholder,

Esq. and her firm, Collins & Collins is DENIED on procedural

grounds.

ANALYSIS

Motion For Sanctions

Cross-Defendant Martin Monica moves

for sanctions pursuant to Code Civ. Proc. § 128.5 and 128.7 against plaintiff, William

Horgan Construction; Paul W. Smigliani, Esq. and his law firm, Intelink Law Group,

PC; and Shanna Burkholder, Esq. and her firm, Collins & Collins. The stated

grounds for this motion are that the plaintiff and his counsel have violated Civil

Code Section 128.5 and 128.7 by doing the following:

a. Knowingly

filing a cross-complaint against the cross-defendant, MONICA, that was totally without any merit for the purpose of financial gain;

b. Continuing

to pursue a cross-complaint against the cross-defendant, MONICA for the purpose of financial gain, despite having facts proving that the cross-complaint against MONICA was totally without any merit,

c. Knowingly

and intentionally serving verified responses to discovery^[1]

served by cross-defendant, MONICA, containing untrue and perjured responses for the purpose of keeping MONICA in the case in order to reap unmerited financial gain;

d. Refusing

to dismiss the cross-defendant, MONICA, despite receiving written notice from MONICA's counsel of her intention to file a Motion for Summary Judgment unless MONICA was dismissed, for the purpose of keeping MONICA in the case in order to reap unmerited financial gain;

e. After the

tentative ruling on MONICA's Motion for Summary Judgment was published by the Court and prior to the hearing on the motion, attempting to dismiss the case in a tactical maneuver intended to prevent MONICA from being the prevailing party in the action in order to keep MONICA from recovering his court costs;

The Second District held in a recently-published decision:

Section 128.7, subdivision (c)(1) provides

the “[n]otice of motion shall be served as provided in [s]ection 1010^[2]”

(Italics added.) To comply with section 1010, a notice of motion “must state when ... it will be made” (§ 1010, italics added.) Reading these two provisions together, a notice of motion seeking section 128.7 sanctions must reflect when the motion will be heard. (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 537–538 [101 Cal.Rptr.3d 803] (*Galleria Plus*).) “Section 128.7’s incorporation of section 1010 is compulsory, not permissive.” (*Id.*, at p. 538.) If the notice of motion fails to specify when the motion will be made, the document is “render[ed] ... fatally defective. [Citations.]” (*Ibid.* [^{*7}])

) Here, the spaces in the October 25, 2024 notice of motion designated for the date and time it was to be heard were left blank, thereby triggering the fatal flaw under sections 128.7 and 1010 as well as *Galleria Plus*.

... [^{*8}] ...

The apparent flaw in the CRS did

not relieve defendant of his obligation under sections 1010 and 128.7 to serve a notice of motion that reflects when the motion will be made. Indeed, if

we were to find Galleria Plus inapplicable simply because it was decided before the era of electronic filing, we would be required to ignore the unambiguous statutory dictates of sections 128.7 and 1010—something we cannot do. (Switzer v. Wood (2019) 35 Cal.App.5th 116, 130 [247 Cal.Rptr.3d 114] [courts ““must follow”” unambiguous statutory language]; Perez v. Torres (2012) 206 Cal.App.4th 418, 423 [141 Cal.Rptr.3d 758] [if statutory language is clear, an appellate court “must follow the plain meaning”].) Although defendant could not secure a hearing date from the CRS that was after the expiration of the safe harbor period, he could have filed an ex parte motion to request the trial court waive the timing restriction applicable to e-filed motions and allow defendant to set a hearing more than 21 days after service of the notice of motion.

(J.N. v. Goldberg (2026) 120 Cal.App.5th 544, 549-50 [bold emphasis and underlining added].)

Since J.N. is a reported decision, this Court is required to follow it. (Auto Equity Sales, Inc. v. Superior Court (1962) 57 Cal.2d 450.) Cross-Defendant Martin Monica has not demonstrated that a copy of the proposed § 128.5 and §128.7 motion was served upon Plaintiff 21-days prior to the September 22, 2026 hearing date with the September 22, 2026 hearing date included on the proposed motion served upon Plaintiff.

As such, the motion for sanctions pursuant to Code Civ. Proc. §§ 128.5 and 128.7 is DENIED on procedural grounds.

[1] Code

Civ. Proc. § 128.5 and 128.7 do not apply to discovery responses. (Code Civ. Proc., § 128.5(e), § 128.7(g).

[2] Code

Civ. Proc. § 128.5(f)(1)(b) contains the same language regarding § 1010.